

Plaintiff shall submit the order and judgment.

11. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Background

Defendant filed a Motion to stay proceedings pending appeal.

The appeal stems from a decision by this court, on 2/3/26, to deny Defendant's request to compel arbitration and stay proceedings in superior court.

There is a trial in the matter set in August, 2026.

Analysis

Under Section 916(a) of the CCP, "[T]he perfecting of an appeal stays proceedings in the trial court upon the ... order appealed from or upon the matters embraced therein, or affected thereby."

In the instant matter, the issue resolved on 2/3/26, clearly affects the remainder of these proceedings, particularly the trial. If the appeal is resolved in Defendant's favor, then compelled arbitration may still occur in the matter, staying the proceedings, particularly the trial.

Thus, Section 916 applies.

Moreover, while there are some exceptions under Section 917 et seq., they do not appear to apply to the instant matter.

Disposition

Defendant's Motion to Stay Proceedings pending appeal is granted.

The court trial will be vacated.

A CMC is scheduled for 10/23/26 at 8:30 am.

The court will file the order and notice the parties.

12. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: FOR RECONSIDERATION**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Defendant has filed a motion for reconsideration ("Motion"), under CCP 1008, asking this court to reconsider its order issued on 2/3/26 ("Arbitration Order").

The Motion was timely served on the Plaintiff.

Plaintiff filed an opposition.

Background

In the Arbitration Order, this court denied Defendant's motion to compel arbitration ("Original Motion"). The reasoning the court provided was that the Defendant had provided no evidence of any agreement between the parties reflecting an arbitration provision.

Though the minutes from 2/3/26, reflected this decision, there is no evidence that written notice of the Arbitration Order was ever served on the Defendant. In fact, the docket does not reflect that the Arbitration Order was ever filed.

In this Motion, and the attached declaration, Defendant provides evidence of a written agreement between the parties to resolve disputes, at the request of either party, through arbitration.

In the declaration that was included in the Motion, Defendant wrote that this evidence was not available to him at the time of the motion to compel arbitration because "Plaintiff's served/attached materials were incomplete ... and did not provide a clear, complete governing agreement tied to my alleged account." See Page 8 of Defendant's Motion.

Defendant attached exhibits to his Motion, purportedly of the agreement between the parties reflecting the arbitration provision, where the captions for the exhibits indicate that these agreements were publicly available. See Exhibits E, F and G of Defendant's Motion. Moreover, the introduction section of his Motion also indicates that he obtained this material from "Target's own published terms." See Page 1 of Motion.

Defendant provided no further explanation for the absence of this information in the Original Motion.

Analysis

CCP 1008 permits a court to reconsider its own ruling if it the court is presented with new or different facts than those on which the initial ruling was based *and* the moving party files the request for reconsideration within 10 days "after service upon the party of written notice of entry of the order."

However, "[A] party seeking reconsideration of a prior order based on 'new or different facts, circumstances or law' must provide a satisfactory explanation for failing to present the information at the first hearing; i.e., a showing of reasonable diligence." *Garcia v. Hejmadi* (1997) 58 CA4th 674, 690.

In the instant matter, since there is no indication of when the written notice of entry of the

Arbitration Order was served on Defendant – or even *if* it was served – there can be no argument that his Motion is untimely. The clock never began ticking.

Yet, Defendant fails to provide a satisfactory explanation about why he could not provide any evidence of the arbitration clause of the agreement in the Original Motion.

There's no evidence that Plaintiff failed or neglected to provide this information after a valid request from the Defendant. Yet even assuming that were the case, Defendant concedes that this information was publicly available, and he can offer no explanation why he did not provide this publicly available information to support his Original Motion.

In sum, the Defendant has not met his burden of showing reasonable diligence.

Disposition

Motion to Reconsider is Denied.

The court will file the Order and serve parties with a copy of the filed Order.

13. 9:00 AM CASE NUMBER: L25-11680

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. LINDSEY GUAY

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to dismiss the default judgment because Plaintiff learned, subsequent to filing the default judgment, that Defendant had filed for bankruptcy.

The Motion was served on Defendant by mail at an address where Defendant was served with process by virtue of substitute service.

Plaintiff cites Section 473(d) of the CCP as the basis for the vacating the judgment and dismissing the matter. But this section applies to judgments that are otherwise void, and it is not clear that the mere act of filing for bankruptcy renders a collections judgment void.